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Case Number: 24PSCV04229 Hearing Date: June 29, 2026 Dept: G

Plaintiff Michael Lucero's Motion for
Attorney's Fees

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff

Michael Lucero's Motion for Attorney's Fees is GRANTED in a reduced amount. The Court AWARDS Plaintiff Michael Lucero a
total of \$13,242.00.

BACKGROUND

This

is a Song-Beverly action arising out of the purchase of an allegedly defective motor vehicle. On February 11, 2023, plaintiff Michael Lucero (Lucero) allegedly bought a car manufactured by defendant Ford Motor Co. (Ford).

Defendant Puente Hills Ford (the Dealership) allegedly failed to repair the car.

On

December 11, 2024, Lucero filed the Complaint, alleging causes of action for (1) breach of express warranty in violation of the Song-Beverly Act, (2) breach of express warranty in violation of the Song-Beverly Act, (3) failure to

service and repair in violation of the Song-Beverly Act, and (4) negligent repair in violation of the Civil Code.

On January

16, 2026, the parties informed the court that they settled the case. On March 17, 2026, the court entered dismissal and retained jurisdiction over the settlement.

On May

13, 2026, Lucero filed this motion for attorney's fees, which is unopposed.

The

motion is set for hearing on June 29, 2026.

ANALYSIS

Lucero

moves for an award of attorney's fees in the amount of \$20,593.13. For the following reasons, the court GRANTS the motion for attorney's fees in the reduced amount of \$13,242.00.

Legal

Standard

"If

the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) "[T]he negotiation of a possible settlement does not excuse the failure to proceed with due diligence in the filing of pleadings, absent some understanding that pleadings need not be filed while negotiations are in process." (Turley v. Turley (1967) 254 Cal.App.2d 169, 173.) In the context of an award of attorneys' fees "the time expended by attorneys in obtaining a reasonable fee is justifiably included in the attorneys' fee application, and in the court's fee award." (Serrano v. Unruh (1982) 32 Cal.3d 621, 631.) "[I]t is inappropriate and an abuse of a trial court's discretion to tie an attorney fee award to the amount of the prevailing buyer/plaintiff's damages or recovery in a Song-Beverly Act action." (Hanna v. Mercedes-Benz USA,

LLC (2019) 36 Cal.App.5th 493, 510.)

In

assessing attorney's fees under the Song-Beverly Act, a trial court must make an "initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended is not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (Robertson v. Fleetwood Travel Trailers of Cal., Inc. (2006) 144 Cal.App.4th 785, 817.)

"It

is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623.) The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) "The reasonable hourly rate is that prevailing in the community for similar work." (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004.) "Under the lodestar method, a party who qualifies for a fee should recover for all hours reasonably spent unless special circumstances would render an award unjust." (Vo v. Las Virgenes Municipal Water Dist. (2000) 79 Cal.App.4th 440, 446.)

"[A]

computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (Margolin v. Regional Planning Com., supra, 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49, discussing factors relevant to proper attorneys' fees award.) Such an approach anchors the

trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the

modification of the lodestar include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Mountjoy v. Bank of America (2016)

245 Cal.App.4th 266, 271.) "[T]he burden

is on the party seeking attorney fees to prove that the fees it seeks are reasonable." (Gorman v. Tassajara

Development Corp. (2009) 178 Cal.App.4th 44, 98.) "[A]n award of attorney fees may be based on counsel's declarations, without production of detailed time records." (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.)

"[P]aralegal fees may be awarded as attorney's fees if the trial court deems it appropriate. . . ." (Roe v.

Halbig (2018) 29 Cal.App.5th 286, 312.)

Where

a party is challenging the reasonableness of attorney's fees as excessive that party must "attack the itemized billing[] with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable." (Premier Medical

Management Systems, Inc. v. Cal. Ins. Guarantee Assn. (2008) 163

Cal.App.4th 550, 563–564.) "[I]t is the

burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence and arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Id. at 564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Ibid.)

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"court should defer to the winning lawyer's professional judgment as to the tasks completed in an action because he won, and might not have, had he been more of a slacker." (Moreno v. City

of Sacramento (9th Cir. 2008) 534 F.3d 1106, 1111.) A losing party cannot litigate tenaciously then be heard to complain about the time spent or tasks performed by the prevailing party in response. (City

of Riverside v. Rivera (1986) 477 U.S. 561, 580, fn. 11.) Where a defendant does not produce evidence contradicting the reasonableness of counsel's hourly rates, the court will deem an attorney's hourly rate as reasonable.

(Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 473.)

Discussion

As

the prevailing party, Lucero is entitled to attorney's fees. To decide the award, the court considers the reasonableness of the claimed hours, the reasonableness of the rates charged, whether to apply a lodestar multiplier, and the amount of costs and expenses.

Reasonableness of the Claimed Hours

Lucero

substantiated all 28.4 hours claimed by counsel in this litigation. The Song-Beverly Act provides for the recovery of "costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer." (Civ. Code, § 1794, subd.

(d).) A verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred." (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.)

However, counsel bears the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.) Fees should be denied where the court finds the tasks unreasonable or unnecessary since "padding in the form of inefficient or duplicative efforts is not subject to compensation." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Lucero's

counsel claims 28.4 hours of legal work.

(See Mot., p. 10; see also Jacobson Decl., Exh. 38, pp. 10.) The verified fee bill is prima facie evidence of the legal services necessarily incurred.

(Jacobson Decl., Exh. 38; see Hadley, supra, 167

Cal.App.3d at 682.) Ford did not file an

opposition to contest the hours claimed by Lucero's counsel. (See Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215, stating that "[c]ontentions are waived when a party fails to support them with reasoned argument and citations to authority.")

Therefore,
Lucero substantiated all 28.4 hours claimed by counsel in this litigation.

Reasonableness
of Counsel's Rates

The
rates charged by some of Lucero's counsel are not reasonable. The trial court is the ultimate arbiter of
what rates are reasonable. (Warren v.
Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36, stating,
“experienced trial judges are the best judges of the value of professional
services rendered in their courts.”) To
determine if an hourly rate is reasonable, courts consider the rates of similar
attorneys in the community as well as “the experience, skill, and reputation of
the attorney requesting fees.” (Heritage
Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

Here,
Lucero's counsel request hourly rates as outlined by this table:

Name

Admission Year

2024 Rate

2025 Rate

2026 Rate

Kevin

Jacobson

2018

\$525

\$525

Matthew

Treybig

2021

\$425

\$500

\$525

Erik

Schmitt

2017

\$475

Gabriel

McIntire

2025

\$425

Stephanie

Hovhannisyan

2025

\$395

Counsel's

declaration provides an overview of the experience and credentials for each listed attorney and legal staff member and their work on this case. (Jacobson Decl., ¶¶ 3–4, 44, 46, 48, 50, 63–76, 78, 82.) The court considered counsel's

declaration, the Laffey Matrix, and the Thomson Reuters' Law Firm Rates Report, but based on a review of this case compared to other Los Angeles-area counsel in similar lemon law cases, the court finds that the rates charged by two attorneys are unreasonable. (See Jacobson Decl., Exhs. 36–37.) Attorneys' rates over \$500 for this type of case is excessive, so the court reduces the rates of each to a maximum of \$500.

For Kevin Jacobson, who billed and substantiated 1.0 hour at a rate of \$525, the court reduces the attorney's fee award by \$25.00. For Matthew Treybig, who billed and substantiated 0.3 hours at a rate of \$525, the court reduces the attorney's fee award by \$7.50.

Therefore, adjusting counsels' rates for reasonableness, the appropriate award of attorney's fees is \$13,242.00 before applying any multiplier.

Lodestar
Multiplier

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lodestar multiplier is not appropriate.

The factors that courts look at to determine if a multiplier is reasonable are: “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Ketchum, *supra*, 24 Cal.4th at 1132.)

“[T]he purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases.” (Id. at 1138.) When a case is not complicated, “the request for a multiplier [is] specious.” (Mikhaeilpoor, *supra*, 48 Cal.App.5th at 255.)

Lucero requests a lodestar multiplier of 1.25. (Mot., pp. 11–13.) To justify the multiplier, Lucero's counsel cites the “excellent outcome” and “substantial

risks posed by this litigation.” (Mot., p. 11, capitalization changed; see also Jacobson Decl., ¶ 82.) However, the other Ketchum factors do not support applying a multiplier. This was a relatively straightforward Song-Beverly action, counsel provided adequate representation, and counsel were not precluded from other employment.

Therefore, the court declines to apply a lodestar multiplier to the award of reasonable attorney’s fees of \$13,242.00.

Costs and Expenses

Lucero did not claim costs and expenses in the motion for attorney’s fees. A prevailing plaintiff has a right to recover all costs and expenses that were reasonably incurred in prosecuting the case. (Civ. Code, § 1794, subd. (d).) Allowable costs must be reasonably necessary to conduct the litigation and reasonable in amount. (Code Civ. Proc., § 1033.5, subds. (c)(2)–(c)(3).)

Lucero did not claim any costs and expenses in this motion nor did they file a separate memorandum of costs, so it not appropriate to include costs and expenses in the attorney’s fee award. (See generally Mot.)

Therefore, Lucero is not entitled to costs and expenses as part of the attorney’s fee award.

Accordingly, the court GRANTS the motion for attorney’s fees in the reduced amount of \$13,242.00.

CONCLUSION

For these reasons, the motion for attorney’s fees, costs, and expenses is GRANTED in a reduced amount. The court AWARDS plaintiff Michael Lucero a total of \$13,242.00.